

Judgment Sheet

IN THE LAHORE HIGH COURT
JUDICIAL DEPARTMENT

Press Civil Appeal No.651 of 2016.

Mir Abdul Razzaq
Vs.
D.C.O., Gujrat.

J U D G M E N T

Date of hearing	21.06.2016
Appellant By:	Mr. Muhammad Irfan Malik, Advocate
Respondents By:	Mr. Faisal M. Buttar, A.A.G. alongwith Mr. Ikram ul Haq, D.O. (Industries), Gujrat.

Faisal Zaman Khan, J:- This appeal under Section 20 of the Press Newspaper Agencies and Registration of Books Ordinance, 2002 (**Ordinance**) is directed against orders dated 29.12.2015 and 20.04.2016 passed by the respondent, whereby declaration given in favour of “Daily Naya Andaz” and Al-mir Printing Press has been cancelled.

2. Succinctly, the facts of the case are that appellant who is the Chief Editor of “Daily Naya Andaz” published a news item *qua* an incident involving desecration of Holy Quran, whereupon, agitation was held in Sarai Alamgir.

3. In pursuance of this news item, a show cause notice dated 03.12.2015 was issued by the respondent to the appellant, which was

duly replied, whereafter, through order dated 29.12.2015 declaration issued in favour of the appellant under the Ordinance was cancelled.

4. Aggrieved by the afore-noted order, Press Civil Appeal No.05/2016 was filed before this Court, which was disposed of on 23.02.2016 and the matter was referred to the respondent for reconsideration, whereupon, order dated 20.04.2016 has been passed hence this appeal.

5. Learned counsel for the appellant submits that on information provided by the District Information Officer, Gujrat, the afore-noted news item was published, therefore, the appellant is not at fault. He further submits that all other local news papers also published the same news item however none have been proceeded against but for the appellant. Lastly, he submits that in furtherance of the afore-noted incident, a criminal case was registered whereupon accused have been arrested, therefore, this cannot be held that the news item published by the appellant had no veracity.

6. Oppose to the above, learned Law Officer submits that the reply to the show cause notice would show that appellant accepts that the news item has been published by his employee without looking into its repercussion, therefore, he may be pardoned. He further submits that as the appellant could not give any plausible explanation *qua* his acts, therefore, respondent rightly passed the impugned orders.

7. Arguments heard. Record perused.

8. At the very outset, it shall be imperative for this Court to look up to the aspect of assumption of jurisdiction by the respondent qua cancellation of declaration.

9. A declaration can be cancelled under section 19 of the Ordinance which for convenience is reproduced below:-

“19. Cancellation of declaration. – (1) *On the application of the Press Registrar either suo moto or based on the information through any person, the District Co-ordination Officer or, where the District Government has not come into being, the Deputy Commissioner empowered to authenticate a declaration under this Ordinance, is of opinion that any declaration made in respect of a newspaper should be cancelled, he may, after giving the person concerned an opportunity of showing cause against the action proposed to be taken, hold an enquiry into the matter and if, after considering the cause, if any, shown by such parties and after giving them reasonable opportunity of being heard, he is satisfied that;*

- (a) *the news paper, in respect of which the declaration has been made is being published in contravention of the provisions of this Ordinance or rules made thereunder; or*
- (b) *the newspaper mentioned in the declaration bears a title which is the same as or similar to, that of any other newspaper published either in the same language or in the country; or*
- (c) *the printer and publisher has ceased to be the printer or publisher of the newspaper mentioned in such declaration; or*
- (d) *the declaration was made on knowingly false representation or concealment of any material fact or in respect of a periodical work which is not a newspaper; the District Co-ordination Officer or, where the District Government has not come into being, the Deputy Commissioner may, by the order, cancel the declaration and shall forward as soon as possible a*

copy of the order to the person making or subscribing the declaration and also to the Press Registrar.

(2) During the period of sixty days of the cancellation order no person shall be issued a declaration in the name of the same title to any other person.

“Provided that in a situation of emergency, pending action under this section, the District Coordination Officer, or as the case may be, the Deputy Commissioner, may suspend the declaration for a period not exceeding thirty days, as deemed appropriate in the circumstances.”

From the above, it is evident that on an application of the Press Registrar (as defined in section 2(m) of the Ordinance) either *suo moto* or based on the information provided by any person, the District Coordination Officer (respondent) can take cognizance of the issue, involving violation of section 19 and thereupon, after inquiry and affording an opportunity of hearing he is invested with the powers to cancel the declaration.

10. While interpreting section 19 of the Ordinance this Court in judgment reported as Qaisar Nadeem Saki v. District Coordination Officer (DCO), Hafizabad and 8 others (PLD 2006 Lahore 76) has held as follows:-

“3. After hearing the learned counsel for the appellant, the learned Assistant Advocate-General appearing for respondents Nos.1 to 4 and respondent No.8 in person and after going through the record of this case with their assistance it has straightaway been noticed by me that the entire proceedings conducted by the District Coordination Officer, Hafizabad in the matter were without lawful authority and coram non judice. According to the provisions of subsection (1) of section 19 of the Press, Newspapers, News Agencies and Books Registration Ordinance, 2002 a declaration of a newspaper can be cancelled by a District

Coordination Officer “On the application of the Press Registrar either suo moto or based on the information through any person”.

Similarly in Muhammad Idrees AASI v. District Coordination Officer, Faisalabad and 2 others (2009 CLC 1163) it has been held that:-

“6. The requirements which are missing in the present case are very obvious. The application in this case has directly been received by the D.C.O. and he has taken action after making inquiry. This inquiry could have been initiated after receiving the application of the Press Registrar. Press Registrar may send such an application either suo motu or on receiving the same from some other person, however, the proceedings can only be initiated on the basis of the application filed by him.”

In the case of Abdul Samad Khan v. Assistant Commissioner (SECTT) ICT, Islamabad and another (PLD 2013 Islamabad 71) it has been held that:-

“A bare reading of section 19 ibid clearly shows that the Press Registrar suo motu or on an information provided by any person can approach the Deputy Commissioner for cancellation of declaration. Subsection (a) of section 19 ibid, provides that the declaration can be cancelled if the newspaper is being published in contravention of provisions of the ordinance or the rules made thereunder. It obviously includes sections 9 and 11 of PNNAV BRO, 2002. As such, even if it is presumed that the allegations referred to by the respondents are correct, the proper course was that they should have approached the Press Registrar to move an application to the Deputy Commissioner. The Deputy Commissioner then was required to issue a notice, hold an inquiry in respect of the allegations and thereafter pass an order under section 19 ibid, if he was of the opinion that the newspaper was being published in contravention of section 19 ibid.”

11. Keeping the above in view this has to be ascertained that whether or not the respondent had the jurisdiction to take cognizance of the matter and cancel the declaration. For ascertaining this, it shall be imperative to reproduce the show cause notice dated 03.12.2015 issued by the respondent:-

“To

*Mir Abdul Razzaq,
Chief Editor, Daily Naya Andaz,
Gujrat.*

Subject: SHOW CAUSE NOTICE

Refer to Daily Naya Andaz dated 28.11.2015.

2. On perusal of your Daily Naya Andaz Newspaper dated 28.11.2015, it revealed that you published a news on the front page of the newspaper, which is reproduced below:-

قرآن پاک کی بے حرمتی: سرائے عالمگیر میں احتجاجی مظاہرہ

3. Your daily declaration published un-authenticated/irresponsible news as mentioned above in respect of agitation on account of profanation of Holy Quran. The role of your declaration tantamount to set back the sectarianism violence and hate among all the sects on your part. Hence, you appeared to be:-

- a) The newspaper, in respect of which the declaration has been made is being published in contravention of provisions of this ordinance or rules made thereunder within the meaning of section 19(a) of the Ordinance, or
- b) The printer and publisher has ceased to be the printer or publisher of the newspaper mentioned in the such declaration within the meaning of section 19(c) of the Ordinance.

4. You are hereby called upon to showing cause within three days after receipt of this communication as to why your declaration may not be cancelled/proceeded under section 19 of the Punjab Press, Newspaper, Agencies and Registration of Books Ordinance, 2002, failing which, it shall be presumed that you have nothing to say in your defence and ex-parte proceedings may be finalized accordingly against the said declaration.

Sd/-
(Liaqat Ali Chatha)
District Coordination Officer,
Gujrat.”

12. Keeping the above provision of law and the case law on the subject in juxtaposition with the show cause notice issued by the

respondent it has surfaced that the matter was never referred by the Press Registrar to the respondent to act under section 19. He on his own motion and without any referral from the Press Registrar took up the matter and cancelled the declaration.

13. In the attending circumstances, it is but for obvious that under Section 19 of the Ordinance, respondent had no authority to take up the matter himself and cancel the declaration of the appellant, therefore, the said order is without lawful authority and *corum non judice*.

14. Another aspect, which has not been considered by the respondent is that when the same news item was published by other local newspapers, extract of which are available on the case file at Page-25 to 33, admittedly, no proceedings have been initiated against them, therefore, *ex facie* the exercise undertaken by the respondent is hit by Article 25 of the Constitution of the Islamic Republic of Pakistan.

15. Last but not least, it is important to note that in furtherance of news item highlighted by the appellant a criminal case bearing FIR No.258/2015 dated 27.11.2015, offences under Sections 295/295-B/436 PPC has been registered with Police Station Saddar Sarai Alamgir, in which a report under Section 173 Cr.P.C. has been submitted, whereupon trial has commenced. In these circumstances,

this could not be held by the respondent that the news item was without any basis.

16. For what has been discussed above, this appeal is **accepted** and as sequel to which the impugned orders being without lawful authority and *corum non judice* are set aside.

17. It is expected of the appellant and other publishers that while publishing a news item, which has far reaching repercussions the authenticity of the same should be ensured and the language in which it is published should not incite violence or hatred or create inter faith harmony disorder or be prejudicial to maintenance of law and order as contemplated in section 5-A of the Ordinance.

(FAISAL ZAMAN KHAN)
JUDGE

Approved for reporting

Shafaqat Ali*